

HOUSE BILL 1451

By Hardaway

AN ACT to amend Tennessee Code Annotated, Title 3,
Chapter 6 and Title 5, relative to county ethics
commissions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) Before January 1, 2027, each county shall create an ethics commission for
the county to aid in protecting the integrity of the processes of government and
preventing abuse.

(b)

(1) A county ethics commission created pursuant to subsection (a) must
be constituted pursuant to this subsection (b), unless the county legislative body
provides an alternative by passage of a resolution.

(2) A county ethics commission is composed of six (6) members, with
two (2) being appointed by the county mayor and four (4) appointed by the
county legislative body. The appointing authorities shall appoint an equal
number of commissioners from the majority party and the minority party, as those
terms are defined in § 2-1-104.

(c)

(1) At a minimum, to be qualified for appointment as a commissioner, a
candidate must:

(A) Be a legal resident of this state for five (5) years immediately
preceding appointment;

- (B) Be at least thirty (30) years of age;
- (C) Be a registered voter in this state;
- (D) Be a person of high ethical standards who has an active interest in promoting ethics in government; and
- (E) Not have been convicted of a felony.

(2) A county legislative body may provide additional qualifications by resolution.

(3) An appointing authority shall not appoint a person as a commissioner if the person or a member of the person's immediate family, as defined in § 3-6-301, has qualified as a candidate for county public office, holds a county public office, or is a member of a political party's state or local executive committee.

(d)

(1) The appointing authorities shall make their appointments at the first meeting of the county legislative body following a regular election.

(2) The initial terms of commissioners are as follows:

(A) The county mayor shall appoint one (1) commissioner to a two-year term and one (1) commissioner to a four-year term; and

(B) The county legislative body shall appoint two (2) commissioners to a two-year term and two (2) commissioners to a four-year term.

(3) After the initial terms, commissioners serve four-year terms.

(e) The county mayor shall call the first meeting of the county ethics commission. The commissioners shall select at that first meeting a chair from the membership. The chair shall serve in that capacity for one (1) year and shall be eligible

for reelection. The chair shall preside at all meetings and shall have all the powers and privileges of the other members.

(f) The county ethics commission shall fix the place and time of its regular meetings by order duly recorded in its minutes. Four (4) members of the commission shall constitute a quorum. Four (4) affirmative votes are required for any commission action. Special meetings shall be called by the chair on the chair's initiative or upon the written request of three (3) members. Members shall receive written notice three (3) days in advance of a special meeting. Notice shall be served personally or left at a member's usual place of residence and shall specify the purpose, time, and place of the meeting. No matters unrelated to the specified purpose may be considered without a specific waiver by all members of the commission.

(g) A county ethics commission shall:

(1) Provide guidance to county officials as to their ethical duties as requested;

(2) Receive complaints from citizens regarding the conduct of county officials; and

(3) Investigate any alleged violation by a county official of an ethical duty, upon sworn complaint or upon its own motion.

(h) A county ethics commission may:

(1) Subpoena witnesses, compel their attendance and testimony, conduct audits, administer oaths, take evidence and require, by subpoena duces tecum, the production of books, papers, records, or other evidence needed for the performance of the commission's duties or exercise of its powers, including its duties and powers of investigation;

(2) Issue written advisory opinions to county officials, upon request;

(3) Request legal and investigative assistance from the county attorney;

(4) Conduct a hearing to determine if an actual violation has occurred;

(5) Issue an appropriate order following a determination of an actual violation; and

(6) Seek injunctive relief in the circuit or chancery court in the county to prevent continuing violations.

(i) If an investigation by the county ethics commission indicates a criminal violation has occurred, the commission shall refer the matter to the appropriate law enforcement agency.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.